

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Souad Moussawi	Team: Team # 2	CCRB Case #: 200814609	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 10/09/2008 1:24 AM	Location of Incident: Plimpton Avenue and Edward L. Grant Avenue	Precinct: 44	18 Mo. SOL 4/9/2010	EO SOL 4/9/2010	
Date/Time CV Reported Fri, 10/10/2008 8:55 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/10/2008 8:55 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Xiomara Linton	27693	945426	044 PCT
2. POM Lamont Gibson	05872	944594	044 PCT
3. SGT Paul Prendergast	03998	916467	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Paul Rau	28460	944156	044 PCT
2. POM Steven Ramunno	11784	930874	044 PCT
3. POM Brian Lauler	01782	943465	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Paul Prendergast	Force: Sgt. Paul Prendergast used physical force against § 87(2)(b)	
B.POM Lamont Gibson	Abuse: PO Lamont Gibson searched the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.	
C.POF Xiomara Linton	Abuse: PO Xiomara Linton searched the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.	
D.SGT Paul Prendergast	Discourtesy: Sgt. Paul Prendergast spoke obscenely and/or rudely to § 87(2)(b)	
E.SGT Paul Prendergast	Abuse: Sgt. Paul Prendergast searched § 87(2)(b)	
F.SGT Paul Prendergast	Force: Sgt. Paul Prendergast struck § 87(2)(b) against a vehicle.	
G.POF Xiomara Linton	Discourtesy: PO Xiomara Linton acted rudely toward § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Synopsis

§ 87(2)(b) filed the following complaint with the CCRB on October 10, 2008. On October 9, 2008, at approximately 1:30 AM, § 87(2)(b) was in a car with his mother, § 87(2)(b) and his brother, § 87(2)(b) who was driving the car at the time. As they were pulling off the Edward L. Grant Highway onto Plimpton Avenue in the Bronx, § 87(2)(b) failed to signal as he merged the car off of the exit ramp. Within moments, a police van turned on its lights and sirens and pulled § 87(2)(b) over. Four officers, identified via the investigation as PO Xiomara Linton, PO Paul Rau, PO Lamont Gibson and Sgt. Paul Prendergast, approached the vehicle. PO Rau initiated contact with § 87(2)(b). During the interaction, Sgt. Prendergast asked § 87(2)(b) to exit the vehicle. As § 87(2)(b) was exiting the vehicle, Sgt. Prendergast allegedly grabbed § 87(2)(b)'s arm and twisted it, exacerbating a previous injury (**Allegation A**). After § 87(2)(b) was removed from the vehicle, PO Linton and PO Gibson entered the rear passenger area of the vehicle (**Allegations B and C**). PO Linton and PO Gibson searched within the back seat and the pockets on the rear of the front seats. While PO Linton and PO Gibson conducted their alleged search, Sgt. Prendergast allegedly said to § 87(2)(b) "Fuck you. Who, the fuck, do you think you are?" (**Allegation D**) and then searched into § 87(2)(b)'s pockets for his driver's license (**Allegation E**). Sgt. Prendergast then slammed § 87(2)(b) into the vehicle (**Allegation F**) before releasing him. Once § 87(2)(b) got back into the vehicle, the officers went to their van. PO Rau and PO Linton returned momentarily to the vehicle with summonses. PO Linton threw a summons § 87(2)(a) 160.50 into § 87(2)(b)'s face (**Allegation G**). The officers then left.

§ 87(2)(b) alleged that Sgt. Prendergast grabbed his arm and twisted it, exacerbating a previous injury.

§ 87(2)(g)

§ 87(2)(b) further alleged that PO Linton and PO Gibson entered and searched his vehicle § 87(2)(g)

§ 87(2)(b) also alleged that Sgt. Prendergast told him, "Fuck you. Who, the fuck, do you think you are?" searched his pockets and slammed his face into his vehicle. § 87(2)(g)

Finally, § 87(2)(b) alleged that PO Linton threw a summons § 87(2)(a) 160.50 into his face.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

Summary of Complaint

Civilian Statements

§ 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on October 20, 2008. § 87(2)(b) is a § 87(2)(b) Hispanic male, five feet and six inches tall, weighing 160 pounds with black hair and brown eyes.

On October 9, 2008, § 87(2)(b) was picked up after work at § 87(2)(b) by his brother, § 87(2)(b). § 87(2)(b) had worked from 3:30 PM to 12:00 AM. § 87(2)(b) was driving § 87(2)(b)'s 2007 Dodge Magnum with § 87(2)(b), § 87(2)(b)'s mother, riding in the front passenger seat. § 87(2)(b) sat behind his mother on the passenger side. When they exited

the Bruckner Expressway in the vicinity of Plimpton Avenue and Edward L. Grant Highway, § 87(2)(b) made a right turn and then § 87(2)(b) noticed a police van following them. The police van began to signal them with lights and warning sounds. Initially § 87(2)(b) did not notice the van or its signals until § 87(2)(b) said to him that he thought the police were signaling them. § 87(2)(b) then told his brother to pull the vehicle over and his brother complied.

Eight officers exited the van and three of them approached § 87(2)(b)'s vehicle. § 87(2)(b) and § 87(2)(b) already had their windows rolled down. PO Paul Rau approached on the driver's side and interacted with § 87(2)(b). Sgt. Prendergast approached the back passenger window where § 87(2)(b) was seated and began to interact with him. PO Linton was standing behind Sergeant Prendergast during his interaction with § 87(2)(b). PO Paul, Sgt. Prendergast and PO Rau were identified via the investigation,

PO Rau explained to § 87(2)(b) that they were pulled over due to a failure to signal. Sgt. Prendergast asked § 87(2)(b) if he knew why the officers had stopped the vehicle and § 87(2)(b) replied, "Was it was because of the signal?" to which Sgt. Prendergast said, "Don't get smart with me." Sgt. Prendergast further explained that they were pulled over because it was late and, "We don't know what you guys got inside the vehicle and you don't know what we got." Sgt. Prendergast ordered § 87(2)(b) to get out of the vehicle. § 87(2)(b) opened his door and began to exit the vehicle. As he was exiting Sgt. Prendergast grabbed his right arm and twisted it, bringing the thumb to face down to the ground and the palm up from the rear. § 87(2)(b) instantly expressed pain from this and pleaded with Sgt. Prendergast to stop twisting explaining he just recovered from a broken arm. Sgt. Prendergast reacted to § 87(2)(b)'s plea when he grabbed the back of § 87(2)(b)'s neck with his spare hand, applied pressure near the back of his ear and said, "Fuck you. Who the fuck do you think you are, you son of a bitch? Fuck you, motherfucker." Sgt. Prendergast continued to apply further pressure and twisted § 87(2)(b)'s arm further in torque. § 87(2)(b) continued to plead with Sgt. Prendergast to release his arm, and that he was really hurting him. § 87(2)(b) began to cry from the pain. Sgt. Prendergast continued to apply pressure on the arm, and used the hand that was holding his neck to dig into § 87(2)(b)'s front left pocket. Sgt. Prendergast pulled out several cards and ID from § 87(2)(b)'s front pocket and looked at them and then frisked § 87(2)(b)'s waist and groin area. One of the cards in § 87(2)(b)'s pocket was a PBA card and Sgt. Prendergast said to § 87(2)(b) "Oh, § 87(2)(b). He must be real proud of you." § 87(2)(b) said, "Yes he is, I haven't done nothing wrong." Sgt. Prendergast replied with, "Fuck you. Who do you think you are?" and smashed § 87(2)(b) into the rear of vehicle with his forehead contacting first. Sgt. Prendergast then released him and ordered him to get back into the vehicle. § 87(2)(b) complied.

§ 87(2)(b) was sitting back in his vehicle when PO Linton and PO Rau approached the vehicle. PO Linton asked for his ID which § 87(2)(b) gave to her. PO Rau conducted a similar interaction with § 87(2)(b) at this time. PO Xiomara and PO Rau returned to the police van and approximately five minutes passed. PO Xiomara and PO Rau returned to the § 87(2)(b)'s vehicle where PO Rau tossed § 87(2)(b)'s ID and summons in the general driver's area through the front driver's window and PO Xiomara threw § 87(2)(b)'s ID and summons at his face which struck him. The police returned to their vehicle and left the scene.

Photo Array

§ 87(2)(b) was shown a photo array at the CCRB on March 2, 2009. During the array, § 87(2)(b) identified three officers of 22 photos shown. Photo one was a photo of PO Lamont Gibson. § 87(2)(b) observed this photo and stated that he recalled it was this black male and a female that opened the car doors. § 87(2)(b) noted for photo one, "Open my car and look inside." Photo seven was a photo of PO Steven Ramunno. When § 87(2)(b) observed this photo, he stated that he recalled that this was the person that grabbed him. § 87(2)(b) noted for photo seven, "This is the person who hit me and took the PBA card out of my pants." Photo 15 was a photo of PO Paul Rau. When § 87(2)(b) observed this photo, he stated that this was the officer that was speaking to his brother, but that he was not sure. § 87(2)(b) noted for photo 15, "Talked to § 87(2)(b) as why he stop me and him for."

Also included in this photo array from the CMD were photos of Sgt. Prendergast, PO Holshek and PO Laufer. These photos did not cause any recollection for § 87(2)(b). § 87(2)(b) stated that his handwriting was poor at this time, because he used to write with one hand but had to now rely on the other. § 87(2)(b) stated that several officers who were present were also missing. He stated that there was an Asian male present as well as a female.

§ 87(2)(b) was interviewed at the CCRB on November 12, 2008. § 87(2)(b) is a § 87(2)(b) Hispanic female, standing 5' tall, weighing 168 pounds with brown hair and eyes.

On October 9, 2008 at approximately 1:00 AM, § 87(2)(b) was traveling in a vehicle with her sons, § 87(2)(b) and § 87(2)(b). As they exited the freeway in the vicinity of Plimpton Avenue and E.L. Grant Highway, they heard a police siren but could not immediately see where it was from as it was dim. § 87(2)(b) rolled down the rear driver's side window and looked out, seeing a marked police van. He then told § 87(2)(b) to pull over and § 87(2)(b) did so.

PO Paul Rau, PO Lamont Gibson, PO Xiomara Linton and Sgt. Prendergast, who were all identified via the investigation, approached the vehicle. PO Rau asked § 87(2)(b) if he knew why he was pulled over. § 87(2)(b) explained that he did not know and PO Rau informed him it was because he had failed to signal. PO Rau then continued to explain that he was also being pulled over because "We don't know what you got, and you don't know what we got." Then the officers momentarily left and returned to the vehicle. Sgt. Prendergast ordered § 87(2)(b) to exit the vehicle. § 87(2)(b) viewed Sgt. Prendergast grabbing § 87(2)(b)'s right arm as he was getting out.

As she was looking to the rear through the side view mirror, § 87(2)(b) observed PO Linton and PO Gibson both open the back doors and enter the back seat area. They searched into the foot wells of the rear passenger area and the rear pockets of the front seats. PO Gibson mentioned to PO Linton that it smelled like smoke to him. PO Linton and PO Gibson got out of the car and shut the doors. § 87(2)(b) attempted to observe PO Linton and PO Gibson while they were searching as she simultaneously viewed Sgt. Prendergast twisting § 87(2)(b)'s arm up in the rear view mirror.

§ 87(2)(b) heard § 87(2)(b) tell Sgt. Prendergast that he was seriously hurting his arm. Sgt. Prendergast replied, "What the fuck do you think you are doing? You think you are fucking going to come over here and..." When Sgt. Prendergast brought § 87(2)(b) to the rear of the vehicle, § 87(2)(b) could no longer hear what they were saying. After PO Linton and PO Gibson closed the rear doors, § 87(2)(b) heard a thump on the rear of the vehicle. She looked quickly to the rear and PO Rau shined his light into her eyes and prevented her from seeing anything else.

At this point, the officers now had § 87(2)(b)'s and § 87(2)(b)'s identifications. § 87(2)(b)'s identification was obtained during events at the rear of the vehicle which § 87(2)(b) did not observe. Once § 87(2)(b) was back in the car, the officers left and went back to the police van. PO Rau and PO Linton returned and PO Rau threw a ticket into § 87(2)(b)'s lap and PO Linton threw a summons into § 87(2)(b)'s face. PO Rau and PO Linton then returned to the van and the officers left.

§ 87(2)(b) was interviewed at the CCRB on November 13, 2008. § 87(2)(b) is a § 87(2)(b), Hispanic male, standing 5'6" tall, weighing 180 pounds with black hair and brown eyes.

On October 9, 2008, at approximately 12:00 AM, § 87(2)(b) picked up his brother, § 87(2)(b) and was driving him home. § 87(2)(b)'s mother, was also in the vehicle. In the vicinity of Plimpton Avenue and E.L. Grant Highway, § 87(2)(b) was pulled over by a police van.

PO Paul Rau, PO Lamont Gibson, PO Xiomara Linton and Sgt. Prendergast, who were all identified via the investigation, approached the vehicle. PO Rau explained that the stop was for failure to signal. PO Rau asked § 87(2)(b) for his driver's license and registration. PO Linton and one of the other officers

from the passenger side began shining their lights into the car. After the initial contact, the officers went back to the police van. Within a couple of minutes, the officers returned to the car. PO Rau came again to the driver's window with PO Linton directly behind him. Sgt. Prendergast and PO Gibson were still on the far side of the vehicle. PO Rau began to issue a summons to § 87(2)(b) when PO Linton told him to roll down the rear window. § 87(2)(b) explained that he could not do so as the car was turned off. She then told him to unlock the door, to which § 87(2)(b) complied. At this point, PO Linton and Sgt. Prendergast opened the rear doors and an unidentified officer ordered § 87(2)(b) to "get the fuck out of the car." § 87(2)(b) § 87(2)(b) could not describe this officer. § 87(2)(b) complied. § 87(2)(b) stated that PO Linton and Sgt. Prendergast searched the backseat area of the vehicle. After they had concluded the search, the officers just closed the doors. During this time, § 87(2)(b) heard his brother screaming "you are hurting my wrist" and an officer replied, "Who the fuck do you think you are?" § 87(2)(b) then heard a thump on the back of the car, and moments later, § 87(2)(b) re-entered the vehicle. The officers went back to the van. PO Rau and PO Linton returned minutes later. PO Rau threw a ticket at § 87(2)(b) and PO Linton threw a ticket into § 87(2)(b)'s face.

Results of Investigation

Identification of Officers Interviewed

PO Lauler was identified via the summons he issued to § 87(2)(b). PO Linton was identified via the summons she issued to § 87(2)(b). In her CCRB statement, PO Linton identified PO Gibson and PO Rau as two of the officers present during the incident. § 87(2)(b) was shown a photo array at the CCRB on March 2, 2009. During the array, § 87(2)(b) identified PO Lamont Gibson as the male officer who searched his vehicle with a female officer. § 87(2)(b) also identified PO Paul Rau, via the photo array, as the officer who spoke to § 87(2)(b). PO Steven Ramunno was also identified via the photo array shown to § 87(2)(b). § 87(2)(b) believed that PO Ramunno was the sergeant involved in the incident because he matched the description of the sergeant he viewed during the incident, which is a white bald male. PO Ramunno was assigned as an Impact training officer. § 87(2)(g) Additionally, in his NYPD photo, Sgt. Prendergast was not bald, § 87(2)(g) Sgt. Prendergast was identified via the roll call as the impact supervisor on October 8, 2008, at the time of the incident.

Officer Statements

PO Xiomara Linton

PO Xiomara Linton was interviewed at the CCRB on November 25, 2008. PO Linton is a § 87(2)(b) old, Hispanic female standing 5'6" tall, weighing 165 pounds with black hair and brown eyes. PO Linton worked a tour of duty from 5:30 PM on October 8, 2008 to 2:05 AM on October 9, 2008. She was partnered with PO Lamont Gibson and PO Paul Rau. They were assigned a 12 person marked van, license 5301. Memobook entries are as follows: 0124 -1096C (Criminal Summons Served), M(ale)/H(ispanic)/ (Date of Birth) § 87(2)(b) Corner of Plimpton Avenue and Edward L. Grant. Male was screaming and yelling, "what the fuck" and cursing. (Summons)#§ 87(2)(b) 0127- 10-98.

On October 9, 2008 at approximately 1:24 AM, PO Linton, PO Rau and PO Gibson were waiting in their van on Edward L. Grant Highway when they observed a vehicle moving from their right to their left, on a road to their front, make a right hand turn near the intersection of Plimpton Avenue and E.L. Grant Highway. At the time, PO Linton was sitting in the first back seat row of the van. PO Rau was in the front passenger seat and PO Gibson was driving the vehicle. The officers turned on the van's lights and sirens and pulled over the vehicle for a failure to signal. She described the vehicle as a black four door vehicle with tinted windows, but could not distinguish make or model. All three officers exited the van to conduct the traffic stop. She did not recall any other police officers who may or may not have been there beyond those recorded in her memo book.

As they approached the vehicle, PO Linton stated that she walked up on the passenger side and her intent was to provide back up for her partners. She did not recall which one of her partners approached on the driver's side, but stated that there was one other officer with her on the passenger side. She did not remember if the windows of the vehicle were rolled up or down, with the exception of the rear passenger

side window which was rolled down. She stated that as soon as she approached the car, a light skinned male, identified as § 87(2)(b) via the investigation, in the rear passenger area became upset and started to yell. PO Linton stated that she attempted to calm § 87(2)(b) down by stating that the stop was not a big deal and that the driver was in the wrong by failing to signal. The back passenger said that the situation was bullshit and asked “what the fuck.”

PO Linton stated that due to § 87(2)(b)'s behavior, which she described as upset and cursing, PO Linton ordered him step out of the vehicle he and was frisked by another officer. PO Linton does not recall if this was discussed between her and the other officers prior to ordering § 87(2)(b) out of the vehicle. PO Linton stated that they felt like § 87(2)(b) had something, and that was why he was upset. She stated that it was for the safety of the officers that they asked him to step out of the vehicle and then frisked him to make sure that nothing was wrong. During later questioning, PO Linton did not recall how it was specifically that § 87(2)(b) ended up outside the vehicle. PO Linton stated that one of the other two officers that were there conducted the frisk, where they patted down the waist area and front of § 87(2)(b)'s chest. PO Linton stated that this was a procedure that they normally do. PO Linton did not recall any additional physical contact that took place between the officer who frisked and § 87(2)(b). She did not recall if the officer who frisked § 87(2)(b) also went into his pockets.

§ 87(2)(b) remained in the presence of PO Linton during the entire time that he was outside the vehicle. PO Linton issued § 87(2)(b) a summons § 87(2)(a) 160.50. She described his behavior as yelling, really upset and cursing. PO Linton told § 87(2)(b) to calm down. She described his physical behavior as tumultuous but did not recall specific bodily movements that § 87(2)(b) made during this time.

PO Linton did not recall if she interacted with the other two occupants of the vehicle at this time, nor did she remember herself going into or conducting a search of the vehicle. PO Linton stated that while she did not remember who searched the vehicle, officers looked in it. She stated “it was not like anything being ripped apart or pulled the dashboard out. It was not anything like that. Just a quick look and it was not anything in depth. Just the back seat.” Upon further questioning, PO Linton stated that she did not recall if the vehicle was entered or just a visual check was made. She stated that she did not recall if, how or when the doors were opened.

Once § 87(2)(b) was back in the vehicle, the officers moved back to the police van. PO Linton stated that she did not recall if they moved back and forth between the police van more than once. During the final time that they went to the car, PO Linton stated that a 10-85 call for assistance came over their radio. She handed § 87(2)(b) the summons, which he took in his hand. PO Linton stated that due to the urgency of the call for assistance, she quickly explained that the information that § 87(2)(b) needed was on the back of the summons and then she departed the scene. PO Linton stated that there was no entry for this call in her memo book but that she stated that 1:27AM was marked as a 10-98 for the completion of the incident with a return to patrol.

PO Paul Rau

PO Paul Rau was interviewed at the CCRB on December 17, 2008. PO Rau worked a tour of duty from 5:30 PM on October 8, 2008 to 2:05 AM on October 9, 2008. He was assigned to Operation Impact in the Bronx in the 44th Precinct and was partnered with PO Lamont Gibson. He was assigned a marked police van, number 5301 and was in uniform. Memo book entries from around the time of incident are as follows: 0055- 96 (B) § 87(2)(b) Eastbound University to Southbound Grant Highway/§ 87(2)(b), 98.

PO Rau did not have an independent recollection of any stops or pulling over any vehicles in the area of Plimpton Avenue and Edward L. Grant Highway on October 9, 2008 at approximately 1:30 AM. At 12:55 AM, PO Rau stated that he pulled over and summonsed an individual named § 87(2)(b), but did not have any independent recollection of this stop. At the time of notification for appearance, PO Rau stated he was informed by PO Linton what his appearance at CCRB was for, but still did not have an independent recollection. PO Rau did not recognize the driver's license photos of § 87(2)(b), § 87(2)(b) or § 87(2)(b).

PO Lamont Gibson

PO Lamont Gibson was interviewed at the CCRB on January 14, 2009. PO Gibson worked a tour of duty from 5:30 PM on October 8, 2008 to 2:05 AM on October 9, 2008. He was assigned to conduct uniformed Impact patrol in a marked van, number 5301. He was assigned two partners, PO Rau and PO Linton. PO Gibson had no memo book entries regarding this incident. PO Gibson saw his supervisor SGT Prendergast at 9:25 PM, prior to this incident.

On October 9, 2008 at approximately 1:30 AM, PO Gibson was riding in a police van with PO Linton and PO Rau. PO Gibson did not recall where in the van he was sitting. PO Gibson saw a dark colored Dodge Magnum with dark tinted windows make a turn without signaling. PO Gibson, PO Rau and PO Linton proceeded to pull the Dodge Magnum over. PO Gibson did not recall any other officers who were on the scene. PO Gibson exited the police van and approached the Dodge on the passenger side in order to back up his partners. PO Gibson did not recall which officer approached on the driver side, or which officer he was standing next to on the passenger side. PO Gibson was unable to see inside the vehicle due to the dark tint and could not independently recall the occupants or recall their behavior. PO Gibson did not recognize the driver's license photo of § 87(2)(b) § 87(2)(b) or § 87(2)(b) PO Gibson did not recall if anyone was asked to step out of the vehicle and did not interact with any of the vehicle occupants. PO Gibson did not enter the vehicle or open any of the doors. PO Gibson stated that the officers took the occupant's ID, went back to the police van and wrote the occupants two summonses. PO Gibson was unaware if anyone ran a check on the identifications. One of the summonses was for § 87(2)(b) § 87(2)(b), but PO Gibson did not know what the other summons was issued for. When they were back at the police van, a call for an additional unit came over the police radio. The officers, who wrote the summonses, ran back to the car, gave the occupants the summonses, returned to the police van and then left the scene. PO Gibson was unable to recall what the call for assistance was regarding.

Sgt. Paul Prendergast

Sgt. Paul Prendergast was interviewed at the CCRB on March 18, 2009 and again on June 11, 2009. The following is a summary of the interview that took place on March 18, 2009. On October 9, 2008, Sgt. Prendergast had noted in his memo book that he was on vacation.

When presented with a copy of the roll call, Sgt. Prendergast did not have an explanation for why he was listed and did not recall any changes to the roll call that took place. When presented with a copy of PO Rau's memo book of the October 8, 2008, Tour 3 from 5:30 PM to 2:05 AM, Sgt. Prendergast examined the supervisor's signature at 9:25 and stated that it looks similar, but based on the fact that it is not a full signature, but a S-G-T followed by a single letter, Sgt. Prendergast could not state beyond a doubt that that was his signature. When presented with a copy of PO Holshek's memo book, for the same tour, Sgt. Prendergast did not recognize the 10:20 PM verification signature. Sgt. Prendergast did not recall which squad he was assigned to or who was in that squad, at the time of the incident.

The following is a summary of the interview that took place on June 11, 2009. Sgt. Prendergast worked from 5:15PM to on October 8, 2009 to 2:12AM on October 9, 2009. He was the impact sergeant and was in uniform. Sgt. Prendergast did not recall who he was working with during the incident. After viewing the roll call, Sgt. Prendergast still did not recall who he was working with. Sgt. Prendergast did not have any entries in his memo book regarding this incident. Sgt. Prendergast stated that in his last interview with the CCRB regarding this incident, he indicated that he was on vacation during the incident because this was noted in his memo book. However, he has since realized that the vacation note was a mistake.

Sgt. Prendergast did not recall this incident. Sgt. Prendergast did not recall the incident after being shown § 87(2)(b)'s photo identification, the summons issued to § 87(2)(b) by PO Rau or being briefed about the details of the incident. Sgt. Prendergast stated that a memo book entry for the day of the incident does not exist. The only note existent for that day is the vacation which was noted by accident. Sgt. Prendergast sometimes fills out his memo book days late and he forgets what he was doing on the days that he notes in his memo book and thus makes mistakes.

PO Brian Lauler

PO Brian Lauler was interviewed at the CCRB on April 7, 2009. PO Lauler worked a tour of duty from 5:30 PM on October 8, 2008 to 2:05 AM on October 9, 2008. PO Lauler was assigned to the 44th Precinct's foot post 18 and was in uniform. PO Lauler had a memo book entry at 1:15AM that stated a summons was issued at the corner of University and Grant Highway.

On October 9, 2008 at approximately 1:15 AM, PO Lauler had a vague recollection of the events involved. PO Lauler recalled that during the last hour of his tour, he was picked up by a patrol van to issue summonses in the vicinity of Edward L. Grant highway. PO Lauler recalled that PO Rau and Sgt. Prendergast were in the van and that there were 6-7 officers total, including him. When shown a copy of the 44th Precinct's roll call for Tour 3, October 8, 2008, PO Lauler recalled in addition that PO Linton and PO Gibson were also present. PO Lauler did not recall PO Ramunno being present that evening. PO Lauler stated that PO Ramunno habitually trains the new and incoming impact officers.

PO Lauler initially only recalled the details of the summons; that a stop of a vehicle was made at the location of University Avenue and Edward L. Grant Highway. PO Lauler was shown a photo copy of § 87(2)(b)'s driver's license, but it did not promote further recollection. PO Lauler also stated that even though he wrote the summons, he might not have necessarily interacted with the subject of the summons. PO Lauler stated that he would have to view the infraction, but that for safety purposes the driver of the patrol vehicle would interact with the occupants of the car that was pulled over. The driver of the patrol car would then come back with the driver's information, PO Lauler would write the summons and then the driver of the patrol car would issue the summons. PO Lauler initially stated that that he did not recall who the driver of the vehicle was. He was again shown the roll call, and it was noted that PO Rau was a white male and PO Gibson was a black male. PO Lauler then stated, based on the description, he believed that PO Rau was the driver of the vehicle.

PO Lauler did not recall the details of the stop. PO Lauler stated that he has issued upwards of 400-500 tickets and it is difficult to recall every stop. PO Lauler was provided with additional details of the stop. PO Lauler did not recall a stop where four officers approached the car or where the person in the back of the car was ordered out and issued a separate summons from the summons that PO Lauler issued. PO Lauler did not recall a stop where PO Linton, PO Rau and PO Gibson went to effect the stop, specifically within the last hour of his tour. PO Lauler also did not recall Sgt. Prendergast using physical force against anyone during this time.

PO Steven Ramunno

PO Steven Ramunno was interviewed at the CCRB on April 8, 2009. PO Ramunno worked a tour of duty from 5:30 PM on October 8, 2008 to 2:05 AM on October 9, 2009. He was assigned as one of two Impact training officers for the 44th Precinct. PO Ramunno was dressed in uniform and was driving in a marked patrol van, number 5630. PO Ramunno did not have any memo book entries regarding this incident.

PO Ramunno did not have an independent recollection of this incident. He did not recall working with PO Rau, PO Gibson, PO Linton or PO Lauler at the time of the incident. PO Ramunno stated that there is no set schedule determining which Impact officers he will be working with during a given tour. Any Impact officers that he will be oversee is determined by a lieutenant or sergeant. PO Ramunno also stated the Impact officers themselves are assigned a vehicle or foot post dependent on the supervision of a sergeant or lieutenant. On the night of the incident, PO Ramunno recalled that Sgt. Napoleon set the schedule, but did not recall if Sgt. Napoleon was himself out on patrol or in the stationhouse. PO Ramunno did not recall seeing SGT Prendergast on this night. PO Ramunno stated that he will also typically split his time between normal patrol duties and checking on the Impact officers, but that split is dependent solely on the amount of activity for the tour. PO Ramunno stated that during the last hour of the tour, the foot posts are not picked up by the vans and cannot recall a time when this has occurred. PO Ramunno stated that if it did, it would be under the orders of a lieutenant or sergeant. PO Ramunno did not recall interacting with PO Callahan on the night of the incident. PO Ramunno also stated that when the Impact officers make a car stop, he would

not be informed about it unless it was called on the radio net. In that case, if the Impact officers needed assistance, they would also call for the patrol supervisor before they would call him.

PO Ramunno did not recognize photocopies of § 87(2)(b) s, § 87(2)(b) s or § 87(2)(b) § 87(2)(b) s driver's licenses. PO Ramunno did not recall a 10-85 call on this night or around this time frame. PO Ramunno did not recall being present at a car stop of a 2007 Dodge Magnum. PO Ramunno did not recall during a car stop an individual being disorderly and cursing at PO Linton or either PO Linton or himself, removing that individual from the car. PO Ramunno did not recall needing to use physical force during a car stop during this time frame. PO Ramunno did not recall interacting with an individual who stated that his father was a police officer. PO Ramunno did not recall being present at a car stop where Impact officers conducted a search of the vehicle.

Medical Records (Encl. 4MM-AAA)

§ 87(2)(b) s medical records note that his original wrist injury occurred on § 87(2)(b) and was a fracture of the scaphoid bone in the right wrist. X-rays produced on § 87(2)(b), noted that no fracture, dislocation, soft tissue swelling or calcification was found as a result of § 87(2)(b) s alleged interaction with the police. A doctor's note from the offices of Dr. § 87(2)(b), on § 87(2)(b), noted that § 87(2)(b) had good strength and mobility in his formerly injured wrist. There is no indication of facial injuries or complaints regarding facial injuries in the medical records.

§ 87(2)(b) [§§ 86(1)(3)&(4)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Police Documents

Sprint (Encl. 6A-D)

SPRINT § 87(2)(b) recorded an interaction between 44th Precinct officers assigned to unit 5301 from 1:15 AM to 1:32 AM. Issuance of a summons was the final disposition at 1:32 AM.

Resource Log/Sprint Index (Encl. 6A-D)

The 44th PCT resource log for 10-85 calls on October 9, 2008 revealed that no such calls were made. The SPRINT Index for the 44th Precinct on October 9, 2008 after 1:15 AM revealed that until 2:00 AM, radio runs of the following categories were made: 1:25 AM, Crime Arrest; 1:43 AM, Unfounded; 1:46 AM, Domestic Incident Report; 1:55 AM, Unfounded Domestic Incident Report; 1:55 AM, Unnecessary; 2:01, Ambulance Call. The SPRINT Index for the 42nd Precinct on October 9, 2008 revealed that until 2:00 AM, radio runs of the following categories were made: 1:26 AM, Unfounded Alarm; 1:38 AM, Ambulance Case; 1:41 AM, Ambulance Case; 1:49 AM, Unnecessary.

Roll Call (Encl. 6E-S)

The 44th Precinct roll call for tour 3, October 8, 2008, revealed that Sgt. Prendergast was assigned as the impact supervisor from 5:15 PM on October 8, 2008 to 2:12 AM on October 9, 2008. PO Rau and PO Gibson were assigned to van 5301. PO Linton was assigned to a foot post. PO Lauler was assigned to foot post 18. PO Ramunno was assigned as an Impact training officer.

Command Log (Encl. 6T)

The command log for Wednesday, October 8, 2008 revealed that Sgt. Prendergast was present for duty at 6:15 PM.

MISD Check (Encl. 6U-W)

Revealed no officer identification for any checks conducted that matched § 87(2)(b) s date of birth or vehicle license plate.

CCRB History

§ 87(2)(b) (Encl. 2)

This is the first CCRB complaint on file for § 87(2)(b)

PO Xiomara Linton, Sgt. Paul Prendergast and PO Lamont Gibson (Encl. 1A-C)

In their 1-year-tenures, PO Linton and PO Gibson have had no prior substantiated CCRB allegations. In his 13-year-tenure, Sgt. Prendergast has had no prior substantiated CCRB allegations.

Conclusions and Recommendations

Subject Officer Identification

PO Linton was identified via the summons she issued to § 87(2)(b). She was the only female officer involved in the incident. § 87(2)(b) stated that the female officer involved in the incident searched his vehicle and threw a summons at his face. § 87(2)(g). § 87(2)(b) was shown a photo array at the CCRB on March 2, 2009. During the array, § 87(2)(b) identified PO Lamont Gibson as the male officer who searched his vehicle with a female officer. § 87(2)(g). PO Steven Ramunno was also identified via the photo array shown to § 87(2)(b). § 87(2)(b) believed that PO Ramunno was the sergeant involved in the incident because he matched the description of the sergeant he viewed during the incident, which is a white bald male. § 87(2)(b) stated that PO Ramunno is the officer who grabbed him, hit him and took the PBA card out of his pants. On the day of the incident, PO Ramunno was assigned as an Impact training officer. § 87(2)(g).

§ 87(2)(b). Sgt. Prendergast was identified via the roll call as the impact supervisor on October 8, 2008, at the time of the incident. Sgt. Prendergast was also bald during his CCRB interviews. § 87(2)(g).

Undisputed Facts

It is not disputed that § 87(2)(b), § 87(2)(b) and § 87(2)(b) were stopped in a vehicle by PO Xiomara Linton, PO Paul Rau, PO Lamont Gibson and Sgt. Paul Prendergast.

Disputed Facts

§ 87(2)(g).
§ 87(2)(g).
§ 87(2)(g).
§ 87(2)(g).
§ 87(2)(g).
§ 87(2)(g).
§ 87(2)(g).

Assessment of the Evidence

§ 87(2)(g).
§ 87(2)(g).
§ 87(2)(g).

PO Lantieri, PO Gibson, PO Rau and Sgt. Prendergast did not recall this incident. PO Linton did recall the incident. However, she denied all of the allegations made by § 87(2)(b). PO Linton § 87(2)(g) stated “it was not like anything being ripped apart or pulled the dashboard out. It was not anything like that. Just a quick look and it was not anything in depth. Just the back seat.” Upon further questioning, PO Linton stated that she did not recall if the vehicle was entered or just a visual check was made.

§ 87(2)(b) alleged that Sgt. Prendergast grabbed his arm and twisted it, exacerbating a previous injury. Sgt. Prendergast did not recall this incident and the other officers interviewed in this case did not corroborate § 87(2)(b)'s allegation. X-rays produced on § 87(2)(b), noted that no fracture, dislocation, soft tissue swelling or calcification was found as a result of § 87(2)(b)'s alleged interaction with Sgt. Prendergast. § 87(2)(g).

§ 87(2)(g) § 87(2)(b) observed Sgt. Prendergast twisting § 87(2)(b)'s arm and heard § 87(2)(b) telling Sgt. Prendergast that he was hurting his arm. § 87(2)(b) also stated that he heard § 87(2)(b) telling Sgt. Prendergast that he was hurting his arm. § 87(2)(g)

§ 87(2)(b) further alleged that PO Linton and PO Gibson entered and searched his vehicle. § 87(2)(g)

§ 87(2)(b) also alleged that Sgt. Prendergast told him, "Fuck you. Who, the fuck, do you think you are?" searched his pockets and slammed his face into his vehicle. Sgt. Prendergast did not recall this incident. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) did not state that § 87(2)(b) was searched. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) both stated that Sgt. Prendergast used profanity when speaking to § 87(2)(b). § 87(2)(g)

Finally, § 87(2)(b) alleged that PO Linton threw a summons into his face. PO Linton denied this allegation. § 87(2)(g)

Allegation A: Sgt. Paul Prendergast used physical force against § 87(2)(b)

§ 87(2)(g)

Allegation B: PO Lamont Gibson searched the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C: PO Xiomara Linton searched the car in which § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g)

Allegation D: Sgt. Paul Prendergast spoke obscenely and/or rudely to § 87(2)(b)

Allegation E: Sgt. Paul Prendergast searched § 87(2)(b)

Allegation F: Sgt. Paul Prendergast struck § 87(2)(b) **against a vehicle.**

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation G: PO Xiomara Linton acted rudely toward § 87(2)(b)

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED].

§ 87(2)
[REDACTED]
§ 87(4-b)
[REDACTED]
[REDACTED]
[REDACTED].

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: